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No. 97-930

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In The

Supreme Court of the United States

October Term, 1997

VICTORIA BUCKLEY, Colorado Secretary of State,

Petitioner.

v.

AMERICAN CONSTITUTIONAL LAW FOUNDATION, INC., DAVID AITKEN, JON BARAGA, CRAIG ELEY, JACK HAWKINS, LONNIE HAYNES, ALDEN KAUTZ, BILL ORR, and WILLIAM DAVID ORR,

Respondents.

On Writ of Certiorari to the United States Court of Appeals for the Tenth Circuit

BRIEF FOR RESPONDENTS AMERICAN CONSTITUTIONAL LAW FOUNDATION, INC., CRAIG ELEY, JACK HAWKINS, LONNIE HAYNES, AND ALDEN KAUTZ

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STATEMENT OF THE CASE

A. COLORADO'S INITIATIVE AND REFERENDUM PROCESSES.

The Colorado Constitution acknowledges the seminal principal that all political power derives from the People. Under it the People expressly reserve to themselves the power to propose laws and amendments through the initiative and referendum processes:

> [T]he people reserve to themselves the power to propose laws and amendments to the constitution and to enact or reject the same at the polls independent of the general assembly
> . . . .

Colo. Const. art. V, sec. 1(1); *see also Colorado Project-Common Cause v. Anderson*, 178 Colo. 1, 495 P.2d 220 (Colo. 1972).

Both of these processes are retained by the People as formal tools for addressing grievances;[1] both are sanctioned

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[1] In 1910 the citizen petition and referendum processes were reserved by the People of Colorado under a constitutional amendment to thwart governmental abuse:

> At the beginning of the agitation for this reform, there was a popular belief among the people that by the strictly representative plan of expressing the popular will, the people were to frequently misrepresented and often betrayed. Indeed, so intense was this feeling that there arose a common cry that representative government was a failure. There was, without dispute, much to justify this feeling. Senatorial elections by the Legislature in many instances had become a national disgrace. Refusal to enact laws repeatedly demanded by the people through their party platforms and otherwise, instilled the belief

by the U.S. Constitution; and, both are consistent with our republican form of government. *See Pacific States Telephone & Telegraph Co. v. Oregon*, 223 U.S. 118, 32 S.Ct. 224 (1912). Notwithstanding this protected status, these processes may not be employed for enactments which are "obnoxious" to the U.S. Constitution. *Romer v. Evans*, 517 U.S. 620, 633, 116 S.Ct. 1620, 1628 (1996) (quoting *Louisville Gas & Elec. Co. v. Coleman*, 277 U.S. 32, 37-38, 48 S.Ct. 423, 425 (1928)).

In Colorado only grievance issues with a significant measure of popular support are placed on the ballot. This is assured by C.R.S. § 1-40-109 and Colo. Const. art. V sec. 1(3) which provide that only petitions containing valid signatures of registered voters representing five percent (5%) of the total number of votes cast for all candidates for the office of the Secretary of State are ballot eligible. This signature requirement is, arguably, a reasonable means to determine which grievance petitions are sufficiently important to submit to a popular vote. Additionally, the five percent requirement is an effective barrier to a potentially cluttered or confusing ballot, and is a means to ensure that petitions presented to the public for consideration concern questions of import.[2] *Jenness v. Fortson*, 403 U.S. 431, 442, 91 S.Ct.

> that corruption was rife and that legislators were subject to the influence of privileged interests. The refusal of Legislatures to submit constitutional amendments, popularly demanded, which in most cases required a two-thirds vote in each house of the assembly, added to the feeling of wrong and injustice.

Van Kleek v. Ramer, 62 Colo. 4, 24, 156 P. 1108, 1115 (1916) (Justice Scott dissenting).

[2] The number of valid petition/referendum signatures required to place an initiative on the ballot in recent years in Colorado is as follows: 1992-1994: 49,279; and, 1995-1998: 54,242. *See McClellan v. Meyer*, 900 P.2d. 24, 27 (1995) (fn. 6); and, signature information for the years 1995-1998 were obtained from Petitioner's office.

1970, 1976 (1971) (upholding statute assuring candidates have a significant modicum of support).

Colorado's initiative and referendum petitions have reflected the redress nature of the petition process in areas where the government was the source of the grievance, or where the legislature has lacked the discipline or will to act. Adopted petitions in Colorado have included: recall of elected officials (1912); repealing state-wide prohibition, subject to national repeal (1932); reapportionment of the General Assembly (1962); limitations concerning the tenure, removal and retirement of state justices (1966); prohibiting levying taxes to support the 1976 Winter Olympic Games (1972); limitations on annexation absent voter approval (1974); limitations on state legislature regarding binding vote caucuses and measures referred to committee/floor (1988); limitations on terms of elected officials (1990); limitations on new taxes absent voter approval (1992); additional term limits (1994); campaign reform (1996); and, protecting public lands from exploitation (1996).

Thus, when the Petitioner arrogantly asserts that "[Respondents] and others who are involved in the initiative process obtained ***a great benefit*** by the reduction in the required number of signatures" [3] to place an issue on the

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[3] Respondents are a public interest group/individuals who were supporters of the referendum on Colorado Senate Bill ("SB") 93-135. They are all actively involved in the petition and referendum processes, they each have differing, sometimes opposing, political agendas, and they have differing views on the viability of working within the traditional political process. They have each spent hours, days, and weeks collecting petition signatures, not because of a promise of financial gain but because of deeply held political beliefs.

David Aitken was the chairman of the Colorado Libertarian Party and a proponent of a referendum on Colorado SB 93-135. Jon Baraga has been the state coordinator for the Colorado Hemp Initiative. Jack Hawkins and Craig Eley are labor advocates who have directed statewide petitions known as the Colorado Safe Workplace Initiative and Worker's Choice of Care Initiatives. Lonnie Haynes is a community activist who has supported state and local petition drives. Alden Kautz has been actively involved in the petition

ballot, she misses the point. Petitioner's Brief, pp. 34-35 (emphasis added). The petition process was reserved by the People of Colorado as a peaceful means for redressing governmental arrogance and perfidy. It is not Respondents who benefit, rather it is the People whose direct democratic voice is heard in furtherance of peaceful change.

When Petitioner further suggests that Respondents should not be permitted to use the First Amendment as a "ratchet, taking what the State ***has given*** them . . . ." (*Id.*) (emphasis added), she misconstrues the source of the State's power. The People give the State power, not vice versa. Is not the First Amendment precisely the tool which the People crafted to ensure the right to petition for redress of grievances? It is not a "ratchet," but the anvil through which freedom is forged and the will of the people secured.

In light of Petitioner's statements it should come as no surprise that Petitioner is not a friend of the petition process, and has a history of exercising her power to deny ballot access to citizen petitions. For example, the constitutional amendments presented by petition in 1992 were the subject of inquiry at trial below. A review of the petition process in-

process and has spearheaded several petition drives. William David Orr was a minor who wanted to circulate petitions on school voucher matters. (He has now reached the age of majority.) *Pro se* Respondent Bill Orr is a qualified elector, but not a registered voter, who sought to circulate petitions. Orr is also the executive director of the American Constitutional Law Foundation, Inc. ("ACLF"). ACLF is a non-profit public interest organization supportive of the processes of initiative, referendum, and recall.

1992 demonstrates that citizen petitions were and are subjected to intense and error-prone, scrutiny by Petitioner. In 1992 Petitioner disqualified 32% of signatures presented.[4] In one instance the Petitioner disqualified over 40% of the signatures submitted, a significant portion of them erroneously.[5]

This wholesale disqualification of valid signatures is not new to the peaceful citizen petition process. In 1988 and again in 1991 the Secretary disqualified tax limitation petitions submitted with adequate and valid signatures. These disqualified signatures were reinstated only after administrative and/or court proceedings. Transcript Day ("Tr. D.") 1, pp. 214 - 216.

In line with her actions on the petition front, Petitioner spends a significant portion of her "Argument" (approximately 25%) debunking the petition process. Petitioner's Brief, pp. 18-23. Her *animus* is particularly evident concerning the use of paid circulators. *Id.* This is ironic since the use of paid circulators is virtually mandated by two constraints on petition circulation which Petitioner supports:

> 1. The pool of possible petition circulators excludes 400,000 qualified non-registered voters, thereby limiting the circulator pool; and,
>
> 2. The time constraints statutorily imposed on the circulation of petitions, thereby limiting the amount of time available to collect signatures.

4 Respondents' stipulated trial Exhibit 12, discussed at trial Transcript Day ("Tr. D.") 1, p. 111, attached hereto as Exhibit A.

5 *McClellan*, 900 P.2d at 28 (fn. 8).

Given the success of citizen petitions imposing time limits (1990) and restricting the legislative authority to levy taxes, it is not surprising that in 1993, the Colorado General Assembly passed Colorado Senate Bill ("SB") 93-135 into law.[6] Colorado SB 93-135, consistent with its predecessors, prohibited individuals who were not registered voters from collecting signatures. This prohibition is likewise found in Art. V, sec. 1(6) of the Colorado Constitution.

It also expanded the paid circulator reporting requirements, C.R.S. § 1-40-121(2)(b), by requiring the filing of reports containing the "name and the residential and business addresses of each of the paid circulators . . . ", along with amounts paid to each circulator. This requirement is in addition to the filing requirements under Colorado's "Campaign Reform Act of 1974". C.R.S. § 1-40-121(1). SB 93-135 also added the requirement that petition circulators wear identification badges. C.R.S. § 1-40-112.

Violation of these restrictions subjects an individual to criminal prosecution by Colorado's Attorney General. C.R.S. §§ 1-40-130 & 132.

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6 Respondents sought to invoke the referendum process to submit Colorado SB 93-135 to a vote of the people. Petitioner's predecessor notified Respondents that the referendum was not permitted because the legislature had attached a "safety clause," *i.e.*, a legislative statement that a bill is "necessary for the immediate preservation of the public peace, health, and safety." Art. V, sec. 1(3), of the Colorado Constitution provides that the legislative attachment of the "safety clause" to an act suspends the right of referendum on that act.

B. THE "FRAUD" FACADE.

Petitioner, and her state *amici* colleagues, rely heavily on fraud prevention to justify the petition circulation restrictions at issue here. They suggest that fraud is, or will become, rampant if non-registered voters are permitted to collect signatures without identification badges and absent the filing of written reports on circulator activity. They assert that fraud is "very flagrant" (Petitioner's Brief, p. 5) and/or "large scale." *Amicus Brief of State of Washington*, p. 3. They argue that the elimination of fraud is paramount. The protection of political expression and Petition Clause are a distant second on their priority list, even though these rights are "inspired by the same ideals of liberty and democracy that gave us the freedoms to speak, publish, and assemble." *McDonald v. Smith*, 472 U.S. 479, 485, 105 S.Ct. 2787, 2791 (1985); and *see also Thomas v. Collins*, 323 U.S. 516, 531, 65 S.Ct. 315, 323 (1945) ("The grievances for redress of which the right of petition was insured, and with it the right of assembly, are not solely religious or political ones.").

Neither the evidence at trial, nor the briefs of the Petitioner and the *amici*, demonstrate that the allegation of "flagrant" or "large scale" fraud is other than an imaginary construct. There is no empirical or anecdotal evidence to show that the registration, reporting, or badge requirements will reduce this already truncated problem.

At trial Petitioner admitted to finding nine instances of alleged fraud where individuals were referred for prosecution in 1992. Petitioner's Brief, p. 5. This alleged fraud affected between several hundred and several thousand signatures. Tr. D. 2, p. 146, ln. 14. In this same year over 1,200,834 petition signatures were submitted to the Petitioner. Exhibit A attached hereto. Thus, assuming *arguendo* 2,000 fraudulent signatures, a mere .17% occurrence of fraud was perpetrated.

Notably, this fraud was not discovered by Petitioner. At trial Petitioner's assistant testified: "We do not actually review for fraud up front. That is done by the opponents normally . . . . " Tr. D. 2, p. 141, lns. 5-6. This alleged fraud was committed by **registered** circulators, because only

registered voters are permitted to circulate petitions in Colorado.[7] There were no badge or monthly paid circulator reporting requirements in 1992 when the alleged fraud was perpetrated.

Assuming *arguendo* that Petitioner's fear of fraud is motivated by a higher calling than restricting the petition process and First Amendment rights, safeguards against fraud are already in place in Colorado which more than adequately safeguard the electorate. First, the petition title is set by Petitioner Secretary of State, who is under strict guidelines to avoid confusing or contradicting titles. C.R.S. § 1-40-105(3). Second, initiative petitions are limited to a single subject. C.R.S. § 1-40-106.5. Third, titles set by the Petitioner are subject to challenge by the citizenry and to judicial review. C.R.S. § 1-40-107. It is only after this scrutinizing process that the citizen petition can be circulated. [8] C.R.S. § 1-40-107(4).

During the circulation process each petition page must contain the petition language and the following warning:

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7 Washington State's *Amicus* Brief points to fraud in the collection of 3,500 signatures on two different petitions. According to Washington's Secretary of State Office, 179,000 valid signatures must be submitted to make a petition ballot eligible. As in Colorado, this fraud was committed by ***registered*** voters. *Washington Initiatives Now! (Win), LLC, et. al., v. Warheit, C975427RJB (Hon. Robert J. Bryan) (D.C. Western Dist. Washington 1998)* According to documents submitted in *Warheit* the correct numbers of these two fraud occurrences were 4,920 and 486 signatures. This was self reported by the proponent.

8 The amount of time permitted to collect signatures is six (6) months from the date of Title setting. C.R.S. § 1-40-108. However, this period is likely to be shortened in a general election year if the Title is challenged pursuant to C.R.S. § 1-40-107, since the judicial review process may further limit the time to circulate.

WARNING:
IT IS AGAINST THE LAW:

For anyone to sign any initiative or referendum petition with any name other than his or her own or to knowingly sign his or her name more than once for the same measure or to knowingly sign a petition when not a registered elector who is eligible to vote on the measure.

DO NOT SIGN THIS PETITION UNLESS YOU ARE A REGISTERED ELECTOR AND ELIGIBLE TO VOTE ON THIS MEASURE.

TO BE A REGISTERED ELECTOR, YOU MUST BE A CITIZEN OF COLORADO AND REGISTERED TO VOTE.

Do not sign this petition unless you have read or have had read to you the proposed initiative or referred measure or the summary of an initiated measure in its entirety and understand its meaning.

C.R.S. § 1-40-110 (1).

The circulator must submit an affidavit with the circulator's name and address in which the circulator states that the circulator has read and understood petition circulation laws; that the petition was signed by registered electors; that the signatures were affixed in the circulator's presence; and that the person affixing the signature was not paid. If this affidavit is not attached the petition section is not accepted by the Petitioner. C.R.S. § 1-40-110 (2).

Next, there is extensive authority given to Petitioner to review all signatures to ensure that only registered electors sign petitions using their most recent voting address. C.R.S. § 1-40-116. Thus, Petitioner has absolute power to address fraudulent signatures.

Following a determination by the Petitioner that a petition measure has sufficient signatures to be placed on the ballot, signature sufficiency is subject to challenge by the citizenry. [9] C.R.S. § 1-40-118.

Once a petition is placed on the ballot, the legislative council of the general assembly prepares a ballot information booklet which addresses the pros and cons of the initiative following a public hearing. C.R.S. § 1-40-124.5. This booklet is then sent to "***every residence*** of one or more active registered electors in the state." *Id.* (emphasis added).

Most importantly, the petition initiative is subject to intense public debate and scrutiny after it is placed on the ballot and prior to voting. C.R.S. § 1-40-108; *see also First National Bank of Boston v. Bellotti*, 435 U.S. 765, 790, 98 S.Ct. 1407, 1423 (1978). The issue will speak for itself and its limitations and/or benefits are the subject to the bright light of scrutiny.[10] Although the proposals may not always be

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9 Although Petitioner argues that the "substantial compliance" test applies to petition signatures, the Colorado Supreme Court has permitted the Petitioner to reject petition signatures which do not constitute a "perfect match" to the master voter list. *McClellan v. Meyer*, 900 P.2d 24 (1995).

10 This Court pointed out in *Belotti* that petition referenda invite and require a high level of political speech:

> Appellee contends that the State's interest in sustaining the active role of the individual citizen is especially great with respect to referenda because they involve the direct participation on the people in the lawmaking process. But far from inviting greater

judicious they give rise to public debate, an exercise at the very core of the Nation's spirit and its Petition Clause.[11]

Finally, if a circulator is found to have engaged in fraud the circulator is subject to a barrage of criminal sanctions for forgery C.R.S. § 18-5-103, Election Code violation, C.R.S. § 1-13-104; and/or petition circulation violations. C.R.S. §§ 1-40-130 & 132.

> restriction of speech, the direct participation of the people in a referendum, if anything, increases the need for " 'the widest possible dissemination of information from diverse and antagonistic sources.' " *New York Times Co. v. Sullivan*, 376 U.S. at 266 84 S.Ct. at 718 (quoting *Associated Press v. United States*, 326 U.S. at 20, 65 S.Ct. at 1424).

Belotti, 435 U.S. at 729, 98 S.Ct. at 1423 (fn. 29).

11 This was eloquently recognized by Justice Holmes:

> But when men have realized that time has upset many fighting faiths, they may come to believe even more than they believe the very foundations of their own conduct that the ultimate good desired is better reached by the free trade of ideas -- that the best test of truth is the power of the thought to get itself accepted -- in the competition of the market, and that truth is the only ground upon which their wishes safely can be carried out. That at any rate is the theory of our Constitution. It is an experiment, as all life is an experiment. Every year, if not every day we have to wager our salvation upon some prophecy based on imperfect knowledge.

Abrams v. United States, 250 U.S. 616, 630, 40 S.Ct. 17, 22 (1919) (J. Holmes dissenting).

ARGUMENT

I.

THE TENTH CIRCUIT'S RULING COMPORTS WITH *MEYER V. GRANT*, 486 U.S. 414, 108 S.CT. 1886 (1988).

A. THE PETITION PROCESS IS PROTECTED BY A HIGHER STANDARD THAN CANDIDATE BALLOT ACCESS.

To peaceably petition the government for redress of grievances is a fundamental exercise of sovereignty by the People. It is a safety valve which can not be scrutinized by the "flexible standard" suggested by Petitioner.

In 1988, this Court ruled against Colorado's statutory limitation on the circulation of petitions by paid circulators. *Meyer v. Grant,* 486 U.S. 414, 108 S.Ct. 1886 (1988). In *Meyer*, due to their experience as petition circulators, petition proponents had concluded that they would need paid personnel to obtain the required number of signatures within the allotted time. *Meyer,* 486 U.S. at 416, 108 S.Ct. at 1889. At that time Colorado prohibited the circulation of petitions by paid circulators under Colorado's statute C.R.S. § 1-40-106 (eff. 1984). Petition proponents sought declaratory relief to determine whether this statute with its prohibition of paid circulators violated the First Amendment of the United States Constitution. Their requested relief was denied.

The matter proceeded to the Tenth Circuit which reversed holding that prohibition on paid circulators was unconstitutionally violative of the First Amendment. *Certiorari* was granted and the case was argued before this Court on April 25, 1988.

In *Meyer*, Colorado argued that because the power of initiative is a state-created right, it is free to impose

"reasonable" limitations on the exercise of that right.[12] This Court rejected this argument, stating:

> We agree with the Court of Appeals' conclusion that the statute trenches upon an area in which the importance of First Amendment protections is "at its zenith." For that reason the burden that Colorado must overcome to justify this criminal law is well-nigh insurmountable.

Id. 486 U.S. at 425, 108 S.Ct. at 1894.

This Court also determined that Colorado's asserted interest in protecting the integrity of the initiative process did not justify the paid circulator prohibition:

> The refusal to permit appellees to pay petition circulators restricts political expression in two ways: First, it limits the number of voices who will convey appellees' message and the hours they can speak and, therefore, limits the size of the audience they can reach. Second, it makes it less likely that appellees will garner the number of signatures necessary to place the matter on the ballot, thus limiting their ability to make the matter the focus of statewide discussion. The Colorado Supreme Court has itself recognized that the prohibition against the use of paid circulators has the inevitable effect of reducing the total quantum of speech on a public issue.

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12 Ironically, Petitioner now argues that the need for "reasonable regulation" is more crucial than ever due to this Court's ruing in *Meyer*, which, they assert, opened the floodgates of petitioning. Petitioner's Brief, pp. 18-23. Respondents are bewildered by Petitioner's negative view of *Meyer*, as she pays lip service to the fact that Colorado has "strongly embraced the initiative process and it jealously protects the rights of Colorado citizens to engage in this process." Petitioner's Brief, p. 18.

Id. 486 U.S. at 421, 108 S.Ct. at 1891-92.

B. THE FIRST AMENDMENT IS NOT GOVERNED BY "BALLOT ACCESS" STANDARDS.

Petitioner has characterized its encroachment on the First Amendment as "ballot access" control. It relies upon candidate petition precedent to suggest that the restrictions at issue here pass constitutional muster. See *e.g. Burdick v. Tankushi*, 504 U.S. 428, 433, 112 S.Ct. 2059, 2063 (1992). In so arguing, Petitioner urges this Court to use a more flexible standard than "strict scrutiny".

Candidate petitions are not constitutional safety valves to redress grievances. They may be tempered because "the right to vote is the right to participate in an electoral process that is necessarily structured to maintain the integrity of the democratic system." *Burdick*, 504 U.S. at 441, 112 S.Ct. at 2067. The candidate's derived rights, though akin to voter rights, are subject to reasonable limitation. *Bullock v. Carter*, 405 U.S. 134, 142-143, 92 S.Ct. 849, 855 (1972).

A candidate's petition is not calculated to redress a grievance but to obtain ballot status. In such cases, the state may impose reasonable restrictions appropriate to protect the voter interests. *Anderson v. Celebrezze*, 460 U.S. 780, 787-88, 103 S.Ct. 1564, 1569-70 (1983).

The Colorado candidate petition process does not impose badges on candidate petition circulators, nor does it impose monthly reporting requirements on circulators. Tr. D. 2, p. 122, lns. 12-15. If badge and reporting regulations are not reasonable in the candidate context where Constitutional concerns are more flexible, how can it be reasonable where "core" political speech effectuating the Petition Clause is at stake?

In contrast to a candidate petition, the constitutional redress of grievances petition process is effectuated by, and is at the core of, a citizen's First Amendment rights:

> The right of the people peaceably to assemble for the purpose of petitioning Congress for a redress of grievances, or for any thing else connected with the powers or the duties of the national government, is an attribute of national citizenship, and, as such, under the protection of, and guaranteed by, the United States. The very idea of a government, republican in form, implies a right on the part of its citizens to meet peaceably for consultation in respect to public affairs and to petition for a redress of grievances.

United States v. Cruikshank, et al., 92 U.S. 542, 552, 2 Otto 542 (1875).

Respondents' petition exercise ***is not derived from*** nor is it secured ***by the right to vote***. Respondents' right to peaceably petition pre-existed the right to vote. Its very exercise secured both freedom of speech and the right to vote.

Although Petitioner requests this Court to apply ballot access standards to the First Amendment issues raised here, the restrictions found unconstitutional by the Tenth Circuit involve "core" political speech which effectuates the First Amendment right of citizens to peacefully seek redress of grievances. Laws which affect these rights are subjected to strict scrutiny analysis.

Petitioner has asserted that the constitutionally permissible area of regulation of the petition process has not been adequately defined. This is erroneous. In *Meyer v. Grant*, 486 U.S. 414, 108 S.Ct. 1886 (1988) this Court established that petition circulation constitutes "core" political speech where the protection of the First Amendment is at its "zenith".

Petitioner suggests that the statutory and/or constitutional provisions which limit circulation of petitions to registered voters, mandate wearing identification badges, and require detailed monthly reporting of the identity of circulators, constitute regulation of elections intended to assure

that order accompanies the democratic process. This is an erroneous characterization of petition circulation.

Petition circulation is pure political speech effectuated to peacefully redress grievances. The gathering of signatures is not "voting". Thus, when the Petitioner suggests that the circulator collects the "votes" and presents them to the Secretary of State to be validated and counted (Petitioner's Petition for Certiorari, p. 11), she is not accurately describing the process of petition circulation.

Voting on a petition does not take place until a general election.[13] From the time it is first proposed until the general election the petition is subjected to intense public scrutiny. In light of this scrutiny, it is not surprising that there is ***no*** requirement that petition signatures be gathered only by or from supporters of the initiative. Citizens such as Respondents are likely to sign petitions, although they may oppose the initiative once it is placed on the ballot, because they believe that petition circulation is the most effective means for peacefully redressing grievances — a right guaranteed by and effectuated through the First Amendment. Thus, this Court must apply strict scrutiny to Petitioner's restrictions in the First Amendment rights of Colorado citizens.

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13 C.R.S. § 1-40-114 declares that "initiative petitions are not election materials . . . ."

II.

THE FIRST AMENDMENT PROTECTS THE RIGHT OF UNREGISTERED CITIZENS TO CIRCULATE PETITIONS.

The Petitioner argues that the registration requirement has limited effect on protected speech, since there are 1.9 million persons registered to vote in Colorado. Petitioner asserts that registering is a simple process which does not unduly limit the right to participate in the petition circulation process. Petitioner's reasoning is faulty because free speech is guaranteed to all citizens regardless of political belief or status.

Respondent Bill Orr testified that he had not registered to vote because of his political beliefs. Tr. D. 1, p. 223. ("It's my form of . . . private and public protest. I don't believe the representative organs of the Government are doing what they are supposed to be doing." *Id.* lns. 23-25.) The First Amendment grants individuals such as Orr the right to engage in political speech, which is protected at the highest level during the circulation process, regardless of his political beliefs. He, like his fellow non-registered citizenry, cannot be deprived of the fundamental right to participate in core political speech because Petitioner believes registering to vote is "simple."

In Orr's case, registering is not "simple." Rather, it would compromise his basic political beliefs. Petitioner cannot demonstrate that the State has a compelling interest in conditioning Orr's right to engage in political speech, which is inherent in petition circulation, on his participation in organized politics.

Respondent and registered voter Jack Hawkins, Director of the Denver Area Labor Federation, testified that his membership contains individuals with differing political views, including individuals who are not registered voters. According to Hawkins, these individuals would be willing to circulate a petition which supported labor issues but are unable to do so due to the State's registration requirement. Tr. D.1,

p. 14, ln. 12 through p. 15, ln. 5. Hawkins was told by a number of potential circulators that they were not registered to vote. They refused to register even after Hawkins requested that they do so. *Id.* p. 15, ln. 23 through p. 16, ln. 8.

Respondent Jon Baraga testified that the registration requirement greatly affects his ability to circulate petitions or to deliver his message:

> Because of the nature of our message [Colorado Hemp Initiative], there are a great many folks who refused to participate as registered voters in the political process who would like to see our measure gain ballot status and would like to help us do that, but are not afforded that possibility by law.

Tr. D. 1, p. 56, ln. 25 through p. 57, ln. 5.

This case has nothing to do with the qualification of public officials, time deadlines for registering in a primary, or the registration requirements in a primary. Rather, it deals with the First Amendment right to peacefully petition for redress of grievances protected by political speech. Thus, the Tenth Circuit below correctly stated:

> Under an equal protection analysis, classifications that impinge upon the exercise of a fundamental right are subject to the most exacting scrutiny . . . . ***[W]hen a statute allows some people to speak but not others the principles of equal protection and free speech are intertwined.***
>
> . . .
>
> The registration requirement has a discriminatory effect. It bars persons who are not registered voters from circulating petitions, thereby excluding that group of persons from participating in core political speech. . . . Colorado acknowledges there are at least 400,000 qualified but unregistered voters in the state. The mandatory exclusion of unregistered circulators also limits the number of voices to convey the proponent's message, limiting the audience that proponents can reach and making it less likely that they will be able to gather the required number of signatures to place a measure on the ballot. Consequently, we apply exacting scrutiny.

American Constitutional Law Foundation v. Meyer, 120 F.3d 1092, 1100 (10th Cir. 1997) (emphasis added)(citations omitted)(decision at issue here).

III.

COLORADO'S BADGE REQUIREMENT VIOLATES THE RIGHT OF ANONYMOUS SPEECH PROTECTED BY THE FIRST AMENDMENT.

At trial, numerous witnesses testified that they had been subjected to harassment while circulating petitions.

Mark Culverhouse described extensive negative contacts with the Colorado Department of Parks and Recreation at a time when he was circulating the Colorado Hemp Initiative. Tr. D. 1, p. 89, ln. 3 through p. 91, ln. 11. He described another incident of harassment occurring on April 5, 1994, while attempting to circulate this initiative in Civic Center Park at a "D.A.R.E." rally. *Id.* p. 92, ln. 20 to p. 93, ln. 1. This latter incident led to Culverhouse's arrest. *Id.*

Likewise, Respondent Baraga described harassment from law enforcement officials while circulating his petition at the People's Fair, an annual late-Spring gathering in Denver, Colorado. He testified that he was also prohibited from circulating petitions in public places such as Denver's Civic Center Park, McNichol's Sports Arena, and Mile High

Stadium parking lots. *Id.* p. 55, ln. 3 through p. 56, ln. 3. Additionally, Respondent Hawkins testified that some people who wore badges while circulating his petition were subjected to harassment. Tr. D. 1, p. 17, lns. 7 - 14.

As Ohio did in *McIntyre v. Ohio*, 514 U.S. 334, 115 S.Ct. 1511 (1995), Petitioner argues that the badge requirement for petition circulators is necessary to prevent fraud. However, Colorado has shown little evidence of fraud. Criminal sanctions for fraud already exist under C.R.S. §§ 1-40-130 & 132, § 18-5-105, and § 1-13-104.

The Tenth Circuit explained that Colorado's badge requirement forces circulators to reveal their identities when they are delivering their political message - a time when the reaction to their message is likely to be most intense:

> Circulating a petition is akin to distributing a handbill. In both instances, an individual identifies himself or herself with a specific viewpoint by personally dissem-inating it. Just as those who distribute handbills have a strong interest in remaining anonymous, so do circulators. As the Supreme Court has explained:
>
> > Anonymity is a shield from the tyranny of the majority. It thus exemplifies the purpose behind the Bill of Rights, and of the First Amendment in particular: to protect unpopular individuals from retaliation--and their ideas from suppression--at the hand of an intolerant society. The right to remain anonymous may be abused when it shields fraudulent conduct. But political speech by its nature will sometimes have unpalatable consequences,

> > and, in general, our society accords greater weight to the value of free speech than to the dangers of its misuse.
>
> *McIntyre*, 514 U.S. at 356, 115 S.Ct. at 1524 (internal citation omitted).
>
> [Petitioners] argue the badge requirement is the type of "limited identification requirement" *McIntyre* suggested might be constitutional. [Petitioners] rely on *Buckley*, which upheld compelled disclosure of certain expenditures and their uses in candidate elections. Requiring circulators to identify themselves against their will is more intrusive than simply disclosing an expenditure. Whereas contributing to a campaign is only a generalized demonstration of support, circulating a petition, and the advocacy it entails, more clearly identifies the circulator with the precisely defined point of view he or she is personally encouraging others to support. Spending money to advance an unpopular viewpoint is a more detached form of support and is less likely to precipitate retaliation than circulating a petition. *Cf. McIntyre*, 514 U.S. at 354, 115 S.Ct. at 1523 (distinguishing expenditure from distributing handbill).
>
> As previously noted, [Petitioners] argue the badge requirement is necessary to enable the state to identify and punish fraud. Section 1-40-112(2) is not narrowly tailored to serve the state's asserted interest. ***Conditioning circulation upon wearing an identification badge is a broad intrusion, discouraging truthful, accurate speech by those unwilling to wear a badge, and applying regardless of the character or***

strength of an individual's interest in anonymity. Additionally, the badges are but one part of the state's comprehensive scheme to combat circulation fraud. Article 40 provides other tools that are much more narrowly tailored to serve the state's interest. *See* C.R.S. §§ 1-40-130, 1-40-131 (criminalizing certain conduct); 1-40-132 (authorizing secretary of state to void a petition). *See also* C.R.S. §§ 1-40-110 (requiring every page to contain a warning to potential signers); 1-40-118 (providing for written protest). Although requiring circulators to wear identification badges may enhance the state's ability to impose other penalties, it does not follow, and it is unestablished, that the badges are a necessary component of the state's arsenal. *Cf. Burson v. Freeman*, 504 U.S. 191, 199, 112 S.Ct. 1846, 1851 (1992) (explaining that "[t]o survive strict scrutiny…a State must do more than assert a compelling state interest--it must demonstrate that its law is necessary to serve the asserted interest").

American Constitutional Law Foundation, et al., v. Meyer, 120 F. 3d at 1103-04 (emphasis added).

Although its value as a deterrent remains questionable (at best) there was extensive evidence that the badge requirement reduced the quantum of petition circulation speech. Respondent Hawkins testified:

> Quite a few folks want to remain anonymous as they go out and do this function. That is the basic gist of it. They want me to explain why they had to wear a badge, which is an explanation I could not make. I did not know why they had to wear a badge.

Tr. D. 1, p. 17, ln. 24 through p. 18, ln. 3.

Likewise, Respondent Baraga testified that wearing badges made it more difficult to circulate petitions. Tr. D. 1, p. 56, ln. 19 through p. 60, ln. 3. According to Baraga, "People have a great fear of retaliation by folks on the street, or by authorities or quasi-authorities. And, with their name on a badge, it makes them afraid. People are afraid, in particular, with this particular message [Colorado Hemp Initiative]." Tr. D. 1, p. 59, ln. 25 through p. 60, ln. 3.

Paul Grant, a witness with significant experience with petition circulation (and the Plaintiff in *Meyer v. Grant)* testified that when he circulated petitions potential circulators "were fearful of negative consequences for being publicly identified as working with us and for us. They thought they were subject to pressures that could be brought to bear on them." Tr. D. 1, p. 132, ln. 1- 4.

Colorado statute already adequately identifies circulators with petition circulation, making the badge requirement superfluous. The petition form identifies the circulator by name and address. Further, the circulator must affirm that circulation was effected in compliance with Colorado law. See C.R.S. § 1-40-111(2). Should the circulator fail to do so criminal prosecution is warranted and the signatures collected will be voided. *Id.*; and, C.R.S. §§ 1-40-130 & 132.

The Petitioner argues the fraud deterrent value of badges while ignoring the core political speech dampened by these same badges. In so doing, she ignores the fact that when the people employ the petition process to redress grievances, the focus should be to ensure the widest dissemination of information. *Bellotti,* 435 U.S. at 790, 98 S.Ct. at 1423. Respondents have demonstrated that the badge requirement burdens "core" political speech and reduces the quantum of speech. Therefore, it cannot withstand strict scrutiny.[14]

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14 Petitioner relies on the trial testimony of Colorado State Representative Wayne Knox that the badge requirement is "very beneficial."

IV.

COLORADO'S CIRCULATOR REPORTING REQUIREMENTS ARE OVERBROAD AND INTRUSIVE.

The risk of corruption perceived in candidate-election cases is not present in a popular vote on a public issue. See *First National Bank of Boston v. Belotti*, 435 U.S. at 790, 98 S.Ct. at 1423.

C.R.S. § 1-40-121 requires proponents of a petition to report the "name, address and county of voter registration of all circulators who are paid to circulate any section of the petition" as well as the amounts paid to each circulator. *Id.*

This broad provision compels the disclosure of the name and address of paid circulators, regardless of the amount received to circulate, without a monetary threshold:

> The court struck down 1-40-121(1) to the extent it compels disclosure of information specific to each paid circulator. Much like requiring identification badges, compelling the disclosure of the identities of every paid circulator chills paid circulation, a constitutionally protected exercise. Although the fact that disclosure is made at the time the proponents file the petition lessens the burden of the disclosure, the law fails exacting scrutiny because the interests asserted by the state either already are or can be protected by less intrusive measures.

ACLF V. Meyer, 120 F.3d at 1104.

This is not surprising since he voted for SB 93-135. During his testimony Representative Knox expressed bias against paid circulators (Tr. D. 2, p. 191, ln. 18 through p. 192, ln. 9.) as justification for the badge requirement.

These disclosure provisions, like the identification badges, chill paid circulator speech which is an exercise protected by the First Amendment. *Meyer v. Grant, supra.* The detailed reporting of the identity of paid circulators is not necessary to protect against fraud. Indeed, Petitioner candidly admitted at trial that she does not check for fraud "up front". Tr. D. 2, p. 141, lns. 5-6.

As demonstrated previously, there are numerous other mechanisms in Colorado which adequately protect against fraud in circulation. See C.R.S. §§ 1-40-130 & 131 (criminalizing misconduct during circulation); C.R.S. § 1-40-132 (authorizing the Secretary of State to void petition); C.R.S. 18-5-103 (forgery); and, C.R.S. 1-13-104 (Election Code violation).

As to Petitioner's public support argument, this asserted State interest is already served by the 5% signature threshold.

The detailed reporting requirement of C.R.S. § 1-40-121 serves one purpose: discourage speech by creating administrative hurdles for paid circulators. It does not discourage fraud. It cannot survive strict scrutiny. It chills political speech without being narrowly tailored to meet a compelling state interest.

CONCLUSION

WHEREFORE, Respondents request this Honorable Court to affirm the Tenth Circuit's ruling.

Respectfully submitted,

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TRIAL EXHIBIT 12

Analysis of Circulator Rejection Rates

INITIATIVES RECEIVED BY THE SECRETARY OF STATE 1992

Definitions

Total Signatures Submitted — Column 1

Number of signatures counted by the Department of State as having been presented for review.

Valid Signatures — Column 2

The number of signatures that could be located on the voter registration list maintained by the Department of State.

Invalid Signatures — Column 3

The number of signatures that could not be located on the voter registration list maintained by the Department of State.

Signatures Not Reviewed — Column 4

The number of signatures that were not reviewed by the Department of State either because enough signatures had been validated to make the ballot or even if all the remaining signatures were valid there were not enough signatures to be certified to the ballot.

Total Number of Signatures Accepted — Column 5

The sum of Valid Signatures and Signatures Not Reviewed (Column 2 + Column 4).

Invalid Signatures/Total Signatures Reviewed — Column 6

Invalid Signatures divided by the result of subtracting Signatures Not Reviewed from Total Signatures Submitted (Column 3/(Column 1 - Column 4).

Exhibit "A"

INITIATIVES RECEIVED BY THE SECRETARY OF STATE 1992

	Total Signatures Submitted	Valid Signatures	Invalid Signatures	Signatures Not Reviewed	Total Number of Signatures Accepted	Invalid Signatures/ Total Signatures Reviewed
Election Reform	61,920	42,382	19,538		42,382	31.55%
Tax Limitation						
No Protected Status	84,475	65,391	19,084		65,391	22.59%
Limited Gaming II	91,923	63,072	28,851		63,072	31.39%
Limited Gaming III	93,590	51,139	42,451		51,139	45.36%
Moratorium/Parachute	97,868	51,448	27,331	19,087	70,533	34.69%
Limited Gaming I	56,696	36,389	20,192	115	36,504	35.69%
Education Reform/Sales Tax	133,603	50,033	13,617	69,953	119,986	21.39%
Vouchers for Education VI	91,646	50,249	20,816	20,581	70,830	29.29%
Limited Gaming VI	69,298	36,068	25,709	7,521	43,589	41.62%
Great Outdoors Colorado	79,680	48,829	19,087	11,764	60,593	28.10%
Limited Gaming VII	84,524	50,825	28,790	4,909	55,734	36.16%
Unsafe Work Environment	71,044	41,531	28,494	1,019	42,550	40.69%
Bear Hunting	76,360	48,274	23,094	4,992	53,266	32.36%
Cannabis Hemp	56,215	11,092	10,581	34,542	454	48.82%
Taxation II	51,994	9,038	4,889	38,067	47,105	35.10%
Totals	1,200,834	655,760	382,524	212,550	823,128	33.65%
Median	79,680	48,829	20,816	11,764	53,266	34.69%
Standard Deviation	20,914	15,868	8,935	21,122	25,017	7.66%